Ashok Kumar Mishra vs State Of U.P. on 5 September, 2023

Author: Shekhar Kumar Yadav

Bench: Shekhar Kumar Yadav

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HIGH COURT OF JUDICATURE AT ALLAHABAD


?Neutral Citation No. - 2023:AHC:175298

Court No. - 71


Case :- CRIMINAL MISC ANTICIPATORY BAIL APPLICATION U/S 438 CR.P.C. No. - 8511 of 2023


Applicant :- Ashok Kumar Mishra

Opposite Party :- State of U.P.

Counsel for Applicant :- Ram Prakash Shukla,Babita Shukla

Counsel for Opposite Party :- G.A.


Hon'ble Shekhar Kumar Yadav,J.
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1. Today, an urgency application for taken up the instant matter has been moved on behalf of Ms. Nisha Mishra, Advocate, who is not the counsel in the present case and under the order of Hon'ble the Chief Justice, the case has been sent before this Court as per order of Registrar (J) (Criminal) dated 05.09.2023.

2. This is second anticipatory bail application on behalf of the applicant. The first anticipatory bail application was rejected vide order dated 18.05.2023, which is reproduced below:

> "List revised. None appeared for the applicant even in the revised call though name of Mrs. Babita Shukla is shown as learned counsel for the applicant and other name is of Mr Ram Prakash Shukla who has sent his illness slip. Learned A.G.A. for the State is

present.

In this application first order was passed on 2.11.2022 since then case was listed for several times but hearing was adjourned by this or that way. Even on the previous date illness slip was sent by the learned counsel for the applicant and last opportunity was granted even though learned counsel for the applicant Mrs. Babita Shukla has also not appeared. It appears that learned counsel for the applicant is not interested in making argument and not want to press this anticipatory bail application.

Accordingly, this anticipatory bail application is dismissed for want of prosecution."

3. Heard Ms. Nisha Mishra, holding brief of Ms. Babita Shukla, learned counsel for the applicant and learned Additional Government Advocate for the State and perused the material available on record.

4. This anticipatory bail application (under section 438 Cr.P.C.) has been moved seeking bail in Case Crime No.83 of 2021, under Sections 147, 323, 506, 307, 325 IPC, Police Station Chitaipur, District Varanasi.

5. In short, the prosecution story is that the applicant alongwith other co-accused persons armed with Lathi, Danda and Firearm have beaten three sons of informant, namely, Praveen, Prashant and Amit Kumar Mishr, as a result of which, they sustained grievous injuries and became unconscious due to the injuries sustained. It is further alleged that another co-accused Diwakar Upadhyay and Ratnakar Upadhyay @ Guddu opened fire upon the injured by their licency revolver. It is further alleged that the injured were taken to trauma centre for their treatment.

6. Ms. Nisha Mishra, holding brief of Ms. Babita Shula, learned counsel for the applicant submits that the applicant has been falsely implicated in the present case, in fact, no such incident has taken place. The applicants has never committed any offence as alleged in the impugned FIR. She further submits that the impugned FIR is a counterblast to the FIR lodged by the applicant against the informant side being Case Crime No.80 of 2021, under Sections 147, 323, 506 IPC showing the incident dated 28.11.2021. She further submits that due to old ancestral property dispute, a civil suit is pending before the court below and just to create pressure upon the applicant, the informant has falsely implicated the applicant. Initially the impugned FIR has been lodged against eight named persons including the applicant. She further submits that the first informant, namely, Ram Prasad Mishra has submitted an affidavit in K.H.U. Varanasi stating therein that the applicant is innocent and applicant has not committed any offence and on the fateful day, the applicant was not present on the spot. She further submits that five co-accused persons, namely, Diwakar Upadhyay, Jai Prakash Narain Upadhyay, Ratnakar Upadhyay, Rohit Mishra and Rahul Kumar Mishra have been granted regular bail by this Court, copy of bail order has been annexed as Annexure No.3 to the affidavit filed in support of the application. She further submits that the investigation is going on and till date no charge sheet has been filed. The applicant is having no previous criminal history as has been mentioned in paragraph 21 of the affidavit. She further submits that applicant has apprehension of imminent arrest and in case, applicant is released on anticipatory bail, he will not

misuse the liberty and would co-operate with the trial.

7. Learned A.G.A. vehemently opposed the prayer for anticipatory bail of the applicant and has prayed for rejection of the same by submitting that the applicant and has submitted that the applicant has given false affidavit that the applicant is having no previous criminal history whereas the is having previous criminal history of five cases including the present case. He further submits that in the alleged incident, three persons, namely, Amit Mishra, Praveen Mishra and Prashant Mishra, who are son of the informant, have received grievous injuries and due to the injures, they were admitted in the hospital. He further submits that the injured have fully supported the prosecution story and have also stated in their statement under Section 161 Cr.P.C. that the applicant and other co-accused persons armed with Lathi, Danda, Hocky, Iron Rod have badly beaten them, as a result of which, they have received grievous injuries. As per injury report of injured Amit Mishra, one fracture has been found in his right ulna whereas as per injury report of second injured namely, Praveen Mishra, fracture at the proximal end of right ulna has been found. As per injury report of third injured, namely, Prashant Mishra, fracture of head of left fibula and fracture at leteral epicondyle of left humerus have been found. He further submits that the allegations are very serious and keeping in view the seriousness of the allegations made against the applicant, applicant is not entitled to grant of anticipatory bail. The apprehension of the applicant is not founded on any material on record. Only on the basis of imaginary fear, anticipatory bail cannot be granted.

8 In the light of above, looking to the facts and circumstances of this case, submissions of learned counsel for the parties as mentioned above, taking into consideration the role assigned to the applicant as per prosecution case, gravity and nature of accusation, this Court is of the view that no case for exercising its discretionary power under Section 438 Cr.P.C. is made out in favour of applicant.

9. Accordingly, this application under Section 438 Cr.P.C. is dismissed.

Order Date :- 5.9.2023 Ajeet